

Kumari Kajol vs Vrs on 3 March, 2023

Author: Aparesh Kumar Singh

Bench: Aparesh Kumar Singh

IN THE HIGH COURT OF JHARKHAND AT RANCHI
Transfer Petition (Civil) No. 50 of 2022
Kumari KajolPetitioner
Vrs.
Rohit Raman Opposite Party
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CORAM: HON'BLE MR. JUSTICE APARESH KUMAR SINGH

For the Petitioner : Mr. Suraj Singh, Advocate
For the O.P. : Mr. Sushant Kumar, Advocate

08/03.03.2023 Counter affidavit has not been filed by the opposite party despite

indulgence granted on 09.02.2023 and mediation proceeding having failed earlier in December, 2022 as per the report of the learned Mediator, JHALSA bearing letter no. 38A dated 03.01.2023.

2. Heard learned counsel for the parties.

3. Petitioner wife seeks transfer of Original Matrimonial Suit No. 142 of 2022, instituted under Section 13(1)(i-a) (i-b) of the Hindu Marriage Act, 1955 by the opposite party husband, from the court of learned Principal Judge, Family Court, Jamshedpur to the court of learned Principal Judge, Family Court, Dhanbad.

4. Marriage between the parties was solemnized on 24.05.2019 as per Hindu rites and customs. Petitioner has instituted a criminal case under Section 498A of the I.P.C against the opposite party being Putkee (Moonidih O.P.) P.S. Case No. 10 of 2022 and also filed Original Maintenance Case No. 49 of 2022 before the court of learned Principal Judge, Family Court, Dhanbad under Section 125 Cr.P.C. for maintenance of herself and her daughter aged about 6 months. After filing of the maintenance case petitioner has received notice in the present suit instituted under Section 13(1)(i-a) (i-b) of the Hindu Marriage Act, 1955 by the opposite party for divorce.

5. Learned counsel for the petitioner submits that due to marital discord and additional demand of dowry petitioner has been forced to live with her parents at Dhanbad. Petitioner has not been able to contest the proceedings of the suit at Jamshedpur as she has to maintain her minor daughter aged 1 ½ years and there are no independent source of income. Opposite party, in any case, has to attend to the proceedings of the criminal case and the maintenance case instituted by the petitioner at Dhanbad. Opposite Party is working as Aeronautical Engineer in New Delhi. As such, prayer may be allowed.

6. Opposite party has prayed for further time to file counter affidavit. However, prayer is declined as sufficient time has elapsed since the failure of mediation and the time granted to file counter affidavit earlier. Learned counsel for the opposite party has opposed the prayer. He has taken the ground of inconvenience of the opposite party in case the suit is transferred from Jamshedpur to Dhanbad as he is stationed at Delhi and posted as Aeronautical Engineer.

7. However, on consideration of the submission of learned counsel for the parties and pleadings on record, this Court is satisfied that interest of justice would be served if the suit is transferred from the learned Family Court, Jamshedpur to the learned Family Court, Dhanbad since on the one hand petitioner, without any independent source of income with a minor girl aged 1 ½ years to maintain, would not be able to properly contest the suit at Jamshedpur whereas the opposite party does not reside at Jamshedpur but at Delhi posted as Aeronautical Engineer. Otherwise also, opposite party, in any case, has to attend to the proceedings of the criminal case and the maintenance case instituted by the petitioner at Dhanbad. As such, let Original Matrimonial Suit No. 142 of 2022 be transferred from the court of learned Principal Judge, Family Court, Jamshedpur to the court of learned Principal Judge, Family Court, Dhanbad. Ordered accordingly.

8. The transfer petition is disposed of.

(Aparesh Kumar Singh, J.) A.Mohanty